



EMPLOYMENT TRIBUNALS

Claimant: Mr Leigh Spinks

Respondent: Barker's (Cambridge) Limited

RECORD OF A FINAL HEARING

Heard at: Bury St Edmunds, in person **On:** 6 October 2025

Before: Employment Judge Boyes (sitting alone)

Appearances

For the Claimant: Claimant representing himself, Mrs Spinks (wife, providing support)

For the Respondent: No attendance

JUDGMENT

1. The Claimant's unauthorised deduction from wages claim succeeds. The Respondent made unauthorised deductions from the Claimant's wages by failing to pay his salary for the period 21/9/2024 to 3/10/2024. The Respondent is ordered to pay the Claimant the sum of £1503.13 which is his net salary owed for the 13 days from 21/9/2024 to 3/10/2024 plus 25% uplift for failure to follow the Acas code.
2. The Claimant's breach of contract claim (wrongful dismissal) succeeds. The Respondent was in breach of contract by dismissing the Claimant without notice. The Respondent is ordered to pay the Claimant the sum of £3815.62 for wrongful dismissal which is his net salary for his 31 day notice period plus 25% uplift for failure to follow the Acas code.
3. The Claimant's breach of contract claim for failure to pay employer pension contributions succeeds. The Respondent was in breach of contract by failing to pay the Claimant's contributions to a pension scheme. The Respondent is ordered to pay the Claimant the sum of £826.68 for this breach of contract plus 25% uplift for failure to follow the Acas code.*
4. The total sum payable by the Respondent to the Claimant forthwith is therefore £6145.43.

5. The Respondent failed to provide the Claimant with itemised payslips for the months of August, September and October 2024 in breach of section 12 Employment Rights Act 1996. No separate award is made for that breach.
6. The Tribunal does not have jurisdiction to determine any claim for compensation relating to any failure by the Respondent to remit deductions from the Claimant's salary (national insurance and income tax) to HM Revenue and Customs.

Calculation of Award

Gross annual salary: £42,000

Net annual salary: £33,763.68

Net daily pay: £92.50 (£33,763.68 divided by 365)

Dates of employment: 22/4/2024 to 3/10/2024

Contractual notice period: 1 month

A. Unauthorised deductions - salary for the period 21/9/2024 to 3/10/2024

13 days x £92.50 = £1202.50

A = £1202.50

B. Damages for wrongful dismissal –salary and holiday pay relating to period 4/10/2024 to 3/11/2024

31 days x £92.50 = £2867.50

Holiday pay 2 days (2 x £92.50) = 185

B = £3052.50

C. Failure to pay pension contributions

Rate of employer contribution required = 3%

Contribution due on gross earnings of between £6240 (which is the qualifying lower earnings limit) and £42,000 = contributions due on £35,760

Daily equivalent contribution on £35,760 = £97.97 x 3% = £2.94 per day

194 days (22/4/2024 to 3/10/2024) x 2.94 = £570.20

31 days (4/10/2024 to 3/11/2024) x 2.94 = £91.14*

C = £661.34*

TOTAL of A + B + C = £4916.34*

D Adjustments

Uplift to award of 25% for breach of ACAS code of practice

D = £1229.09*

Grand total A + B + C + D = £6145.43*

**These figures are amended from those given orally at the hearing to correct an arithmetical error (damages for failure to pay employer pension contributions for 4/10/2024 to 3/11/2024 had not been included in the calculation)*

Procedural matters

The Respondent did not attend the hearing. Enquiries were made but no response received from the Respondent. Having made enquiries and considered all of the other information before me, I decided to proceed with the hearing in the absence of the Respondent as I considered that it was in accordance with the Overriding Objective and I was not satisfied that if I were to adjourn the hearing that the Respondent would attend at a future date in any event (rule 47 of The Employment Tribunal Procedure Rules 2024 applied).

Approved by:

Employment Judge Boyes

Date: 14 October 2025

Sent to the parties on:

5 November 2025

For the Tribunal Office:

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